

Contentious Chamber

Decision on the merits 120/2024 of September 11, 2024

File number: DOS-2022-03251

Subject: Complaint regarding the processing of personal data by a partner providing assistance to litigants at the request of a court: legality (Articles 6 and 9 of the GDPR) – rectification (Article 16 of the GDPR) – erasure (Article 17 of the GDPR)

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke Hijmans, President, and Mr. Dirk Van Der Kelen and Mr. Romain Robert, members, taking up the case in this composition;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

1 The new internal regulations of the DPA, following the amendments made by the Law of December 25, 2023, amending the law of December 3, 2017, establishing the Data Protection Authority (LCA), came into force on June 1, 2024. In accordance with Article 56 of the Law of December 25, 2023, it applies only to complaints, mediation files, requests, inspections, and proceedings before the Contentious Chamber initiated from that date: <https://www.autoriteprotectiondonnees.be/publications/eglement-d-ordre-interieur-de-lautorite-de-protection-des-donnees.pdf> Files initiated before June 1, 2024, such as in this case, are subject to the provisions of the LCA not amended by the Law of December 25, 2023, and the internal regulations as they existed before that date.

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Has made the following decision regarding:

The complainant:

X, hereinafter referred to as "the complainant."

The defendant:

Y (partner providing assistance to litigants), represented by Masters Alexandre Cruquenaire, Chloé Antoine, and Léa Quertemont, Lexing, lawyers whose office is located at Avenue de Luxembourg, 152, 5100 Jambes,

Hereinafter referred to as "the defendant."

I. Facts and procedure

1.

The complaint concerns the processing of personal data relating to the complainant and his minor child by the defendant (in its capacity as a partner providing assistance to litigants) in the exercise of the mission entrusted to it by the Court of First Instance of (...), Family Section (hereinafter the court or the family judge of (...)) by successive judgments aimed at restoring a relationship between the complainant and his son.

2.

On July 30, 2022, the complainant filed a complaint with the Data Protection Authority (DPA) against the defendant.

3.

On August 9, 2022, the DPA's First Line Service (SPL) declared the complaint admissible based on Articles 58 and 60 of the LCA, and forwarded it to the Contentious Chamber in accordance with Article 62, § 1 of the LCA.

4.

The facts underlying the complaint date back to the years 2020 and 2021 and are summarized below.

5.

By a judgment of March 24, 2021, pronounced in a public hearing of the Family Court, the Court of First Instance of (...), division (...), confirmed the mandate entrusted to the defendant by judgment of [date], itself confirmed by judgment of [date], to organize and supervise the meetings between the complainant and his child. The same judgment of [...] specifies that the defendant must submit a written report on the conduct of these meetings to the court registry by May 15, 2021, at the latest. Finally, the judgment adds that a copy of this decision will be notified to the defendant by the court registry.

6.

The relevant excerpt from the judgment of [date] is reproduced below:

"By judgment of [date], the court has (...), provisionally (...) mandated [read: the defendant] to supervise the meetings between A. [i.e., the complainant's son] and Mr. X. [read: the complainant]. [The defendant] submitted several reports on [dates] as well as on [date].

By judgment of [date], the court has (...) provisionally maintained the provisions of the judgment pronounced on [date](...).

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[The defendant] submitted a new report on [...].

III. Decision

After deliberation, the court issues the following judgment: (...) confirms the mandate of [read the defendant] (...) entrusted to it by judgment of [date] and confirmed by judgment of [date] to organize and supervise meetings between Mr. X [the complainant] and the common child, specifying, however, that from now on: (...))2 – the association [read the defendant] must submit a written report on the conduct of these meetings to the registry of this court by May 15, 2021, at the latest. It is stated that a copy of this decision will be notified by the registry to [the defendant].

(...) »3.

7.

This judgment(s) is/are part of a gradual resumption of the complainant's right to personal relationships with his child following the separation of the complainant and the child's mother.

8.

The defendant is a support service for the exercise of the right to personal relationships between parents - child(ren), grandparents - child(ren), siblings, etc., when this right is interrupted, difficult, or conflictual. In the majority of cases, the defendant intervenes at the request of civil courts as in this case or the Youth Aid Services (SAJ) and Youth Protection Services (SPJ). It can also intervene in the context of purely private requests.

9.

The defendant is an accredited partner providing assistance to the litigant (formerly "Z") within the meaning of the decree of October 13, 2016, concerning the accreditation and funding of partners providing assistance to litigants⁴ (hereinafter "the decree of October 13, 2016") and its action was framed, at the time of the reported facts, within the scope of this decree.⁵

10.

In execution of the mandate entrusted to it by the family court of (...), the defendant organized the requested meetings and submitted several reports of these visits to its mandator. These reports, including report 1 and report 5 contested below (point 14), have, as mentioned by the defendant on its website regarding its statutory mission and in accordance with the terms of the aforementioned judgment (point 6), the objective of allowing the judge to form an idea of how the meetings are conducted.

2 Description of the modalities of the visit within the defendant: punctuality of the parents, sobriety, etc.

3 It is the Contentious Chamber that emphasizes this.

4 M.B., December 22, 2016.

5 Since January 1, 2024, the actions of the defendant are governed by the decree of October 5, 2023, introducing the Community Justice Code, which repeals the decree of October 13, 2016. This latter decree being in force at the time of the disputed facts, it is in light of this that the Contentious Chamber

makes this decision.

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11.

On June 1, 2022, the complainant addressed the defendant in the following terms:

“In the absence of contradiction regarding certain of your reports and in the drafting of incorrect elements, I would first like to modify them. And only if necessary, during the civil procedure in which you participated, to have them destroyed afterwards.

Moreover, I take this opportunity to contact the justice house which designates you as solely responsible for data processing, to ask you for the name of the person responsible within your organization as well as the legal basis that allows you to send reports as an organization providing assistance to litigants under the mandate of the court (Article 55 of the law of July 30, 2018).”

12.

In its response of June 8, 2022, the defendant specifies to the complainant:

- that its reports sent at the request of the court as part of its mission are drafted based on factual elements and that it will not revisit their content;
- that the complainant is free to assert his position regarding the content of the reports before the court if he deems it necessary;
- that its reports are, regarding the legal basis, drafted based on the decree known to the complainant as well as based on the mandate entrusted to it by the court with which the foundations of reporting have also been agreed;
- that it is subject to a 10-year archiving obligation before any possible destruction of its archives, particularly considering its obligation to justify the number of cases processed to the subsidizing authority.

13.

On the same day, June 8, 2022, the complainant expresses his disagreement with this response to the defendant and questions its professionalism.

14.

In his complaint to the APD dated July 30, 2022, the complainant denounces:

- unlawful processing of personal data concerning his child under 13 years old. He believes that the communication by the defendant of the reports prepared for the family court cannot rely on any lawful basis, as the defendant has no competence to collect personal data from his minor child. He also indicates that if a “GDPR regulation” was signed, it would not mention the processing of data concerning his minor child.
- the lack of follow-up by the defendant to his request for rectification and deletion. The complainant believes that certain data contained in the

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The reports established by the defendant are inaccurate and therefore needed to be corrected and/or deleted.

As examples, the complainant requests the following modifications.

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In report 1 of (...) which states that (...) “the parties were not punctual,” the complainant would like it to be indicated that he had to wait for the other party to arrive.

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In report 5 of (...) which states that (...) “Mr. prepares cups and he plays a game,” the complainant would like it to be noted that he played a small game to assess his child's swallowing problem (followed by a description of the game). Regarding the (...) - date, where it is mentioned that “Mr. also lets him taste what he brought,” the complainant would like it to state “I gave him blueberries and made him bite into a large strawberry. He refuses large pieces of apple. Again, he spits out the skins of the blueberries and a piece of strawberry.”

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Other requests for modification of the description of the meetings are made by the complainant. The Disciplinary Chamber does not reproduce them in full here.

15.

Regarding the documents submitted by the complainant, the Disciplinary Chamber notes that the following are included:

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A consent form regarding the processing of data necessary for the execution of the defendant's mandate, which the complainant indicates he signed (an email sent on October 10, 2020, to the defendant attests to this) but which according to him, as mentioned in point 14 above, would not authorize the processing of data concerning his minor child. This consent form highlights that within the framework of the defendant's mission, the personal data processed pertains to visitation rights, the parent-child relationship, and any information deemed relevant by the intervenor for the child's well-being. The document also specifies that this data is transmitted in a report to the principal (in this case, the family court of (...)), to the lawyers of each party, as well as to the parents. It is also mentioned that the data is processed in order to inform and assist the principal (in this case, as already mentioned, the family court) in evolving the family situation.

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An internal regulation of the defendant that the complainant does not contest having signed. He produces in this regard an email (here too, the email of October 10, 2020, sent to the defendant attests to this).

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16.

On February 19, 2024, the Disciplinary Chamber adopts, in support of the complaint and the submitted documents, a decision 34/2024 based on Article 95, § 1, 3° of the LCA (preliminary procedure prior to the decision on the merits) by which it dismisses the complaint. This decision is notified to the complainant on February 20, 2024, and communicated to the defendant in accordance with the Disciplinary Chamber's Policy on Dismissal without Further Action.

17.

Upon receiving this decision, the complainant informs the Disciplinary Chamber that part of the reasoning of decision 34/2024 relies on the decree of May 27, 2004, regarding the approval and funding of "Meeting Space" services, which has been repealed.

18.

In light of this element, and as authorized by the Market Court (Court of Appeal of Brussels), the Disciplinary Chamber withdraws its decision 34/2024 on February 23, 2024.

19.

On the same February 23, 2024, the Disciplinary Chamber decides, pursuant to Article 95, § 1, 1° and Article 98 of the LCA, that the case can be examined on the merits. On the same date, the parties are informed by registered mail of the provisions set out in Article 95, § 2 as well as Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions.

The deadline for receiving the defendant's response conclusions is set for April 8, 2024, for the complainant's reply conclusions on April 30, 2024, and for the defendant's reply conclusions on May 22, 2024.

Based on the facts reported in the complaint, the Disciplinary Chamber invites the parties to present their arguments regarding the potential breaches revealed by these facts, namely a potential breach of Articles 5.1. a), 6 and 9, 12, 13 as well as 16 and 17 of the GDPR.

20. On February 24 and March 11, 2024, the complainant and the defendant respectively request a copy of the file (Article 95, § 2, 3° LCA), which is respectively transmitted to them on February 26, 2024, and March 14, 2024.

21.

The parties also agree to receive all communications related to the case electronically.

22.

On April 8, 2024, the defendant submits its response conclusions to the complainant and the Disciplinary Chamber. The defendant having submitted additional and summary conclusions, a

summary of its arguments is provided below in point 24.

23.

On April 30, 2024, the Disciplinary Chamber receives the complainant's reply conclusions:

6 <https://www.autoriteprotectiondonnees.be/publications/politique-de-classement-sans-suite-de-la-chambre-contentieuse.pdf>

7 See particularly the ruling of the Market Court of June 30, 2021 (nr. 2021/5564) in which the Court of Appeal states "An administrative authority may withdraw its decision. The withdrawal has the consequence that the decision retroactively (ex tunc) disappears from the legal order."

8 The Disciplinary Chamber having been unable to receive this first submission, the conclusions were resent to it on April 12, 2024.

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In general, the complainant believes that the defendant's counsel distorts the legislative reality and deliberately misleads the Contentious Chamber, notably using their esteemed status, eristic dialectics, and "fallacious syllogisms" in their conclusions. After recalling what Aristotelian logic, eristic logic, and biases are, the complainant enumerates to the Contentious Chamber the relevant legal concepts that, in their view, pertain to the case at hand, derived from both the GDPR (rights of the data subject and permitted limitations on those rights) and the LTD (Articles 7, 8, 14, and 27), as well as the legal framework for assistance partners to the litigant (the decree of October 13, 2016, the decree of December 1, 2022, amending the aforementioned decree of October 13, 2016, and the government order of the French Community implementing the Community Justice Code).⁹ The complainant then critically analyzes the defendant's arguments and concludes, at the end of their demonstration, to the unlawfulness of the data processing denounced. In summary, this unlawfulness results, according to the complainant, from the fact that the judge of the family court unlawfully and even unconstitutionally entrusted a "reporting on private life" mission to the defendant, whereas the texts regulating the actions of the latter do not permit this type of reporting and data processing, except in the context of monitoring the approval and funding of organizations such as the defendant, for the communication of data to the administration for the purpose of controlling the proper execution of their missions. Furthermore, there is no question of the communication of data (related to the health, moreover) of their son under the terms of the judgment, and Article 8.1 of the GDPR, which would have required their consent on behalf of their son under 13 years of age in their capacity as legal representative, has not been respected.

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From this unlawfulness, according to the complainant, derives the validity of their requests for rectification and erasure, to which the defendant has wrongly refused to respond favorably.

24.

On May 22, 2024, the Contentious Chamber receives the additional and summary conclusions of the defendant:

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Regarding the alleged absence of a lawful basis (Article 6 of the GDPR), the defendant concludes that, in addition to the request from the Family Court of (...), the decree of October 13, 2016, as well as its implementing orders, constitute a legal basis of sufficient quality. The denounced data processing, whether the data relates to the complainant or their son, is based on a valid lawful basis as required by the GDPR (Article 6.1.e). As for the lawful basis justifying the processing of the complainant's child's data, the defendant refutes any

⁹ The complainant also cites the past regulatory framework such as the "Code of Ethics" of meeting spaces and its annex 2, as well as the repealed decree of May 27, 2004, relating to the approval and funding of "Meeting Spaces" services.

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application of Article 8 of the GDPR as claimed by the complainant, the conditions for its application not being met in this case according to her.

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The defendant, on the other hand, believes it can rely on Article 9.2. g) of the GDPR for the processing of data related to the health of the complainant's child.

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Regarding the alleged lack of response to the complainant's request for rectification (Article 16 of the GDPR), the defendant asserts that the complainant's requests were unfounded (no data being inaccurate) and that therefore, it was justified not to comply with them in its response dated June 8, 2022.

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As for the alleged lack of response to the complainant's request for erasure (Article 17 of the GDPR), the defendant argues that the complainant had no legitimate grounds under Article 17.1 of the GDPR to obtain such erasure. The defendant believes it can rely on Article 17.3. b) of the GDPR due to the retention obligations (for the purpose of justifying grants and archiving) to which it is subject under the decree of October 13, 2016.

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Regarding the publication of the decision, the defendant primarily requests that it not be published and, alternatively, that it be published in an anonymized manner and free from any description that would allow identification.

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Finally, concerning corrective measures and sanctions, the defendant believes that since no breach of the GDPR has been demonstrated by the complainant, the Contentious Chamber should order a dismissal. Alternatively, it argues that there is no need to impose a fine or penalty. In an infinitely subsidiary manner, if an administrative fine were to be imposed, the defendant requests the opportunity to present its observations regarding its qualification under the LTD as well as concerning the amount of the fine.

II. Motivation

II.1. Regarding the application of the GDPR

25.

It is undisputed that the data processing carried out by the defendant is subject to the GDPR. The conditions for application provided by the temporal, material, and territorial scope of the GDPR (Articles 2 and 3) are indeed met.

26.

The defendant has processed personal data relating to the complainant and his minor son. Article 4.1 of the GDPR defines the notion of "personal data"

10 Article 17.3. b) of the GDPR: Paragraphs 1 and 2 do not apply insofar as the processing is necessary: (...) b) to comply with a legal obligation which requires the processing by Union law or by the law of the Member State to which the controller is subject, or to perform a task carried out in the public interest or in the exercise of official authority vested in the controller.

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as "any information relating to an identified or identifiable natural person (hereinafter referred to as 'data subject'); a 'identifiable natural person' is deemed to be a natural person who can be identified, directly or indirectly, particularly by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more specific elements related to their physical, physiological, genetic, mental, economic, cultural, or social identity."

27.

According to the Article 29 Working Party, the notion of "any information" must be interpreted broadly. It may therefore include objective information or subjective information, that is to say, opinions or assessments regarding the data subject. The Court of Justice of the European Union (CJEU) has indeed ruled, in its judgment *Nowak*, that the evaluation and remarks of an examiner in the context of an examination presented by the data subject should be considered personal data within the meaning of the relevant article of Directive 95/46/EC applicable at the time and reiterated in the current Article 4.1 of the GDPR.

28.

The Contentious Chamber notes that the reports of the defendant factually recount the meetings that took place between the complainant and his son. The actions of both observed by the staff of the defendant are recorded therein, and the complainant and his son are identified or identifiable. These reports contain information relating to both of them, father and son, within the meaning of the above-mentioned Article 4.1. Even assuming that this information is classified as "subjective" in that it would be reported by a third party (the defendant), *quod non*, it would nonetheless remain as specified above "personal data" concerning the complainant and his son within the meaning of Article 4.1 of the GDPR.

29.

The defendant has carried out automated processing (within the meaning of Article 4.2 of the GDPR) of personal data relating to the complainant and his child by typewriting the reports containing personal data concerning them, communicating these reports to the competent court, as well as retaining them (presumably electronically) internally. Even assuming there are doubts regarding the automated nature (complete or partial) of either of the processes,

11 Article 29 Working Party, Opinion 4/2007 on the concept of personal data, WP 136 of June 20, 2007. While this opinion clarifies the notion of "personal data" as set out in the now-repealed Directive 95/46/EC, the definition reiterated in Article 4.1 of the GDPR is identical to that of the aforementioned directive, and the considerations of this opinion remain relevant, subject to developments in the case law of the CJEU. This is the case with regard to the elements mentioned above.

12 CJEU, judgment *Peter Nowak v. Data Protection Commissioner* of December 20, 2017, C-434/16, ECLI:EU:C:2017:994, § 42.

13 Article 4.2 of the GDPR: "processing," any operation or set of operations performed or not performed by automated means and applied to personal data or sets of personal data, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction.

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In these processes, the defendant has, in any event, carried out manual processing of personal data that is intended to be structured in the complainant's file, either in a file as defined in Article 4.6 of the GDPR¹⁴ before being communicated and stored.

30. It follows from the above that the GDPR is applicable, as the conditions of Article 2.1 (material scope) are met (personal data processing has been carried out in an automated manner or at least in a manual manner but organized in a file), as well as those of Article 3.1 of the GDPR (territorial scope), the defendant being primarily established on Belgian soil.

31.

Furthermore, the defendant has carried out the aforementioned processing as a data controller within the meaning of Article 4.7 of the GDPR¹⁵, which is not contested by any of the parties and is acknowledged by the defendant itself. This status arises from the mission entrusted to it by the Community legislator, as will be further developed in this decision. Indeed, the status of data controller - which is attributed to the person who determines the purposes and means of processing - may arise from the law that specifically designates them or result from the assignment of a public interest mission.¹⁶

II.2. Regarding the grievance concerning the absence of a legal basis on the part of the defendant (Articles 6 and 9 of the GDPR)

II.2.1. Parties' viewpoints

Complainant's viewpoint

32.

The complainant believes that while "the family court could mandate a partner for the exercise of personal relationships," it could not "mandate a partner to report on the private life of a minor and a citizen without any consent in the context of a civil procedure." According to the complainant, "the public interest lay in maintaining personal relationships, not in the processing of personal data intended for the monitoring of the partner's approval" exclusively (page 20 of the complainant's

conclusions). The complainant thus argues that he has never been

14 Article 4.6 of the GDPR: "file," any structured set of personal data accessible according to determined criteria, whether centralized, decentralized, or functionally or geographically distributed.

15 Article 4.7 of the GDPR: "data controller," the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of processing; when the purposes and means of such processing are determined by Union law or the law of a Member State, the data controller may be designated or the specific criteria applicable to its designation may be provided for by Union law or by the law of a Member State.

16 European Data Protection Board (EDPB), Guidelines 07/2020 on the concepts of controller and processor in the GDPR, July 7, 2021, points 22-24: https://www.edpb.europa.eu/system/files/2023-10/edpb_guidelines_202007_controllerprocessor_final_fr.pdf

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The question of whether to include in the missions of partners assisting the litigant, such as the defendant, the obligation to transmit reports to the judge, especially regarding a minor child whose data has been processed without the consent of their legal representative (see below). The relevant decree of October 13, 2016, makes no mention in this regard of reporting to the judiciary for purposes that the complainant qualifies as "investigation." According to the complainant, the processing of data by a partner providing assistance to the litigant, such as the defendant, can only be done for the purposes of monitoring (Article 20 of the decree) by the administration, the proper execution of its missions and its obligations related to its accreditation and subsidies, in order to improve the service to the litigant and not to inform the judicial authorities (page 17 of the complainant's conclusions). Thus, the judicial mandate should, according to the complainant, "have been refused ab initio" as being illegal and unconstitutional in light of Article 22 of the Constitution (page 18 of the complainant's conclusions).

33. Regarding more specifically the basis of legality for the processing of his minor child's data, the complainant cites Article 8.1 of the GDPR¹⁷ and Article 7 of the LTD¹⁸ and emphasizes that he never consented to the processing of his son's data, who is under 13 years old, and therefore, the processing of this data is unlawful.

34. He also cites Article 8 of the LTD¹⁹ in relation to Article 9.2.g) of the GDPR invoked by the defendant²⁰, limiting himself to highlighting a few passages stating that the processing

17 Article 8 of the GDPR: 1. Where Article 6(1)(a) applies, in relation to the direct offering of information society services to children, the processing of personal data of a child is lawful when the child is at least 16 years old. When the child is under 16 years old, such processing shall be lawful only if, and to the extent that, consent is given or authorized by the holder of parental responsibility for the child. Member States may provide by law for a lower age for these purposes, provided that such lower age is not below 13 years. 2. The controller shall make reasonable efforts to verify in such cases that consent is given or authorized by the holder of parental responsibility for the child, taking into consideration the available technology. 3. Paragraph 1 shall not affect the general contract law of the Member States, in particular the rules on the validity, formation, or effects of a contract in relation to a child.

18 Article 7 of the LTD: In execution of Article 8.1 of the Regulation, the processing of personal data relating to children in relation to the direct offering of information society services to children is lawful when consent has been given by children aged 13 years or older. When this processing concerns personal data of a child under 13 years old, it is lawful only if consent is given by the legal representative of that child.

19 Article 8 of the LTD: § 1. In execution of Article 9.2.g) of the Regulation, the following processing operations are considered necessary for reasons of significant public interest: 1° processing carried out by associations with legal personality or by foundations whose main statutory objective is the defense and promotion of human rights and fundamental freedoms, for the purpose of achieving this objective, provided that such processing is authorized by the King, by a deliberative order in the Council of Ministers, after consultation with the competent supervisory authority. The King may provide for modalities of this processing; (...) § 2. The controller and, where applicable, the processor shall

establish a list of categories of persons having access to personal data with a description of their function in relation to the processing of the data concerned. This list shall be made available to the competent supervisory authority. The controller and, where applicable, the processor shall ensure that the designated persons are bound, by a legal or statutory obligation, or by an equivalent contractual provision, to respect the confidentiality of the data concerned.

20 Article 9.2.g) of the GDPR: 1. The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, as well as the processing of genetic data, biometric data for the purpose of uniquely identifying a natural person, data concerning health, or data concerning a natural person's sex life or sexual orientation is prohibited.

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must be authorized by the King or that the data controller must establish a list of categories of persons having access to the data with a description of their function.

Defendant's viewpoint

35. In its conclusions and additional and summary conclusions, the defendant argues as follows:

- The complainant is a litigant within the meaning of Article 1.1° of the decree of October 13, 2016, more specifically a "close relative of a minor" defined in Article 1, 6° who can benefit from one of the aids organized by the said decree, namely the aid for maintaining the relationship. Article 10 of the decree provides that the mission of the partners regarding the aid for maintaining the relationship "is understood as assistance aimed at creating, maintaining, framing, or restoring the relationship between two persons, at least one of whom is a litigant." Article 11 specifies that to implement this mission, the partner must "1° assist the close relative of a minor who does not live with him or her in maintaining, creating, or restoring the relationship between them, notably by preparing and organizing meetings in an appropriate place, supervised by a neutral third party."
- The ministerial order of May 17, 2017, implementing the government order of the French Community of May 17, 2017, implementing the decree of October 13, 2016, describes in its Annex 16 regarding the aid for maintaining the relationship for the close relative of the minor, that the partner (i.e., the defendant) has, within the framework of its mission of aid for maintaining the relationship, the task of managing requests arising from a judicial decision, from the SAJ, from the SPJ, or from the agreement of the parties (Article 2.2.).
- The mission of the defendant is also determined by the family court when it mandates the organization of meetings between the complainant and his child on the one hand and to "file with the registry (...) a written report on the conduct of these meetings (...) on the other hand" (see the text of the judgment reproduced in point 6 above). The defendant notes that while the complainant contests (among other aspects) the legality of the submission of reports to the judge in the context of the present procedure before the APD, he has, however, not filed a judicial appeal contesting the legality of the family court's decision in this regard. The defendant emphasizes that the APD does not have the jurisdiction to substitute itself for the legally organized judicial remedies that the complainant has chosen not to exercise.

2. Paragraph 1 does not apply if one of the following conditions is met: g) the processing is necessary for important public interest reasons, based on Union law or the law of a Member State, which must be proportionate to the objective pursued, respect the essence of the right to data protection, and provide appropriate and specific measures for the safeguarding of the fundamental rights and interests of the data subject; (...).

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36. The defendant concludes that in addition to the decision of the family court of (...), the decree of October 13, 2016, as well as its implementing orders, constitute a legal basis of sufficient quality in terms of predictability. The disputed processing is therefore indeed based on a valid legality basis within the meaning of Article 6.1. e) of the GDPR, which the defendant, empowered by the said texts with a public interest mission within the meaning of this article, can invoke.

37. Regarding the necessity of processing the data of the complainant's child more specifically, the defendant relies on Annex 16 to the decree of October 13, 2016, already mentioned, which describes the activities and tasks of the defendant in relation to minors by providing for interviews with them as

well as the implementation of specific care conditions determined during team meetings. These meetings and actions related to the minor can only be effectively carried out by processing personal data concerning them, including health data when aspects related to their health need to be addressed.

38. Specifically regarding the "health data" of the complainant's son, the defendant believes that it could rely on Article 9.2. g) of the GDPR, the four conditions of which are met.

- The processing is justified by an important public interest reason based on the law of a Member State: the decision of the family court based on the child's interest on the one hand and the decree of October 13, 2016, and the ministerial order of May 17, 2017, already cited on the other hand;
- The processing is proportionate to the objective pursued: it is proportionate for the reports to relate the facts and statements made during the meetings, including aspects related to the speech therapy of the complainant's son, the complainant having requested an assessment in this regard;
- The processing respects the essence of the right to data protection. The decree provides for safeguards for data protection, including confidentiality (see the 4th condition below);
- Appropriate and specific measures for the safeguarding of the fundamental rights and interests of the data subject are provided for by the decree, such as the professional secrecy to which the staff of the defendant is bound (Article 51 of the decree). The defendant also cites the Code of Ethics for meeting spaces (Annex 2 of the Walloon government order of July 28, 2004, implementing the decree of May 27, 2004, concerning the approval and funding of "Meeting Spaces" services) which provides for respect for the privacy of the children and parents received as well as an obligation of confidentiality and professional secrecy for the staff.

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39. The defendant adds that Article 8.1 of the GDPR and Article 7 of the LTD, which implements it in Belgian law, invoked by the complainant are not applicable in this case as they require the fulfillment of two conditions that are lacking. According to the defendant, there is (1) no question of data processing related to the direct offering of services of the information society to a child in the sense given by Article 4.25 of the GDPR by reference to Directive EU 2015/1535, and (2) no processing based on consent under Article 6.1. a) of the GDPR, since, as argued above, the defendant relies on Article 6.1. e) of the GDPR as materialized by the decree of October 13, 2016, and not on Article 6.1. a) of the GDPR.

40. In conclusion, the processing of data relating to both the complainant and his minor son – including data concerning the latter's health – is, according to the defendant, based on a valid legal basis, namely Articles 6.1. e) and 9.2. g) of the GDPR.

II.2.2. Assessment of the Contentious Chamber

41. The Contentious Chamber notes that initially, the complainant seemed to limit his complaint to the unlawfulness of the data processing of his son in the reports of the defendant and to the unlawfulness of the communication of these reports (at least report 1) to the family judge in execution of the judgment of March 24, 2021. However, it appears to the Contentious Chamber that in his conclusions, the complainant more generally denounces the unlawfulness of the data processing carried out by the defendant, including data concerning himself. The Contentious Chamber will therefore seek to verify the lawfulness of all the data processing (of the complainant and his minor son) denounced.

42. The Contentious Chamber recalls that any processing of personal data must be based on one of the legal bases provided for in Article 6.1 of the GDPR.

43. When particular categories of data within the meaning of Article 9.1 of the GDPR are processed, the data controller must be able to rely on both a legal basis provided for in Article 6.1 of the GDPR (see above) and be able to lift the prohibition on processing particular categories of data provided for in Article 9.1 of the GDPR. In other words, the defendant must, in addition to one of the hypotheses of Article 6.1 of the GDPR, be able to validly invoke one of those listed in Article 9.2 of the GDPR.

21 Directive (EU) 2015/1535 of the European Parliament and of the Council of September 9, 2015, establishing a procedure for information in the field of technical regulations and rules relating to the services of the information society, OJ L 241/1.

22 The ruling of the Court of Justice of the European Union (CJEU) of December 21, 2023 (C-667/21 -

ECLI:EU:C:2023:102) establishes this requirement for the cumulative application of Articles 6 and 9 of the GDPR in that any processing must meet the condition of lawfulness (Article 6 read in combination with Article 5.1. a) of the GDPR) and the additional protection offered by Article 9 of the GDPR to particular categories of data.

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44. Report 1 prepared by the defendant for the judge mentions the question posed by the complainant to his ex-wife regarding the speech therapy follow-up for their son. The issue of the son's swallowing ability is also mentioned in the contested reports (reports 1 and 5). Article 4.15 of the GDPR²³, as clarified by recital 35²⁴, broadly defines what is meant by "related to health" or "concerning the health status" of a person. Swallowing problems and speech disorders reveal an aspect of the health status of the complainant's son and are therefore health-related data within the meaning of Articles 4.15 and 9.1 of the GDPR.

45. In this case, the Contentious Chamber notes that the processing of data concerning both the complainant and his minor son by the defendant is a consequence of the judgment issued by the family court of (...) which explicitly designates the defendant (1) to organize meetings between the complainant and his son on the one hand and (2) to provide reports on these meetings on the other hand (point 5 of the statement of facts).

46. The Contentious Chamber considers that the defendant processed the data of the complainant and his minor son in execution of the mission entrusted to it by the community legislator under the decree of October 13, 2016 (Article 6.1.e) of the GDPR) following the judgment issued.

47.

The invocation of Article 6.1.e) of the GDPR presupposes the fulfillment of the conditions below that the Contentious Chamber will seek to verify:

- o The data controller (the defendant) must, in accordance with Article 6.3.b) of the GDPR read in light of recitals 41 and 45, be entrusted with the execution of a mission of public interest or related to the exercise of public authority under a legal basis, whether in EU law or in the law of the Member State;

See particularly the 3rd preliminary question in point 71 and the conclusion of the CJEU in points 78 and 79 of its judgment:

<https://curia.europa.eu/juris/document/document.jsf?jsessionid=9591B02703C9ECFD8AF9810A9AEC98A6?text=&docid;=280768&pageIndex;=0&doclang;=en&mode;=req&dir;=&occ;=first&cid;=9493645>

23 Article 4.15 of the GDPR: "data concerning health," personal data related to the physical or mental health of a natural person, including the provision of health care services, which reveal information about the health status of that person.

24 Recital 35 of the GDPR: Personal data concerning health should include all data relating to the health status of a data subject that reveal information about the past, present, or future physical or mental health of the data subject. This includes information about the natural person collected when that natural person registers to receive health care services or during the provision of those services within the meaning of Directive 2011/24/EU of the European Parliament and of the Council (9) for the benefit of that natural person; a number, symbol, or specific element assigned to a natural person to uniquely identify them for health purposes; information obtained during the testing or examination of a part of the body or a bodily substance, including from genetic data and biological samples; and any information concerning, for example, a disease, disability, disease risk, medical history, clinical treatment, or the physiological or biomedical status of the data subject, regardless of its source, whether it comes from a doctor or another health professional, a hospital, a medical device, or an in vitro diagnostic test.

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o

The purposes of the processing must be necessary for the performance of a task carried out in the public interest or in the exercise of official authority.

48. Recital 41 provides clarification on the quality of this legal basis referred to in the first condition:

"When this Regulation refers to a legal basis or to a legislative measure, it does not necessarily mean

that the adoption of a legislative act by a parliament is required, without prejudice to the obligations laid down under the constitutional order of the Member State concerned. However, this legal basis or legislative measure should be clear and precise, and its application should be foreseeable for those subject to it, in accordance with the case law of the Court of Justice of the European Union (CJEU) and the European Court of Human Rights (ECHR)."

49. In other words, in accordance with Recital 41 of the GDPR, this legal basis or legislative measure must be clear and precise, and its application must be foreseeable for those subject to it, in accordance with the case law of the CJEU and the ECHR.

50. This requirement of foreseeability implies that certain elements constitutive of the processing must be included in the legislative measure or legal basis, including the purpose of the processing.

51.

Regarding the requirement of necessity (2nd condition: processing is lawful only if and to the extent that it is necessary for the performance of a task carried out in the public interest), the Contentious Chamber emphasizes that the legislation establishing the public interest task often does not contain specific provision(s) regarding data processing that are necessary for the performance of that task. Data controllers wishing to invoke Article 6.1(e) of the GDPR must, in this case, carry out a balancing act between the necessity of the processing for the public interest task they pursue and the interests of the data subjects.

52.

It is important - in summary - to distinguish on the one hand the public interest task that must be defined by law (1st condition) and on the other hand the data processing that is carried out in the context of the performance of this public interest task, which processing must be necessary for the execution of this task but is, as has just been explained, not always literally provided for by the normative text assigning the task in question (2nd condition).

53. As mentioned above, the Contentious Chamber will seek to verify whether these conditions for the application of Article 6.1(e) of the GDPR were met in this case, as well as those of Article 9.2 of the GDPR with regard to the health data of the complainant's son.

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Regarding the public interest mission and the quality of the legal basis (Article 6.1. e) - 1st condition)

54. The Contentious Chamber notes that it follows from Articles 1, 10, and 11 of the decree of October 13, 2016, that the mission of the defendant includes providing support for maintaining the relationship between litigants by assisting a relative of a minor who does not live with them in maintaining, creating, or restoring the relationship between them, notably by preparing and organizing meetings in an appropriate location, supervised by a neutral third party. It also follows from Annex 16 of the ministerial order of May 17, 2017, implementing the government order of the French Community of May 17, 2017, implementing the decree of October 13, 2016, that this support for maintaining the relationship can occur at the request of the judiciary (point A.2.2.).

55. The Contentious Chamber concludes that the defendant has indeed been entrusted with a public interest mission by the legislator and that the purpose of the data processing carried out in this case in execution of the mission legally assigned to it, read in light of the request from the family judge, is sufficiently established under the terms of the aforementioned decree.

Regarding the necessity of processing the complainant's and his son's data (Article 6.1. e) – 2nd condition)

56. The Contentious Chamber considers that the execution of its mission by the defendant at the request of the judge in this case necessarily involves the processing of data of the complainant and his son. The fact that the decree of October 13, 2016, and its implementing texts do not specify that the organization and preparation of meetings within the framework of the support for maintaining the relationship involve the processing of personal data does not prevent the Contentious Chamber from considering, along with the defendant, that these processes are necessarily part of the exercise of this mission. They materialize in factual reports that support the defendant in carrying out its mission. These reports underpin the core of its activity, and it is not uncommon in this case, as the Contentious Chamber recalled above, for the legislator not to detail (all) the data processing required for the exercise of the mission it assigns.

57. The fact that the same decree details the data to be communicated by the defendant to justify its subsidies and the maintenance of its accreditation does not undermine this finding nor exclude that other data processing—such as those mentioned above, which take the form of the defendant's reports—may be necessary for its mission within the meaning of Article 6.1. e) of the GDPR. The Contentious Chamber specifies in this regard that the GDPR also provides in Article 6.1. c) that a legal obligation may justify the lawfulness of data processing. Unlike data processing that can be qualified as "necessary for the performance of a public interest mission" within the meaning of Article 6.1. e) of the GDPR, data processing that relies on Article 6.1. c) of the GDPR must always be expressly provided for by the legal text.

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58. It follows sufficiently from the request of the family judge that the requested reports will necessarily include personal data relating to the child since this request from the judge consists, as stated in point 6 above, of "organizing and framing the meetings between the complainant and his child."

59. The same judgment specifies that the defendant must "file a written report on the conduct of these meetings with the court registry." Here again, the defendant, in accordance with the already cited Annex 16, may be called to intervene at the request of the judiciary (point A.2.2.), and the Contentious Chamber is of the opinion that the defendant could rightly rely on both the decree and the civil judgment that designated her to communicate to the court personal data of the complainant and his son in the form of a report.

60. The question of whether, as claimed by the complainant, the judge's mandate should never have been issued and was intrinsically illegal and unconstitutional does not fall within the competence of the APD (nor of the Contentious Chamber) as provided by the GDPR (articles 55 et seq.) and article 4 of the LCA. The APD is neither an appellate judge of judicial decisions nor a constitutional judge.

61.

Regarding the processing of health data of the complainant's son, the Contentious Chamber is, in support of the considerations that follow in points 62 and 63 below, of the opinion that the defendant could, in addition to article 6.1. e) of the GDPR, rely on article 9.2. g) of the GDPR which lifts the prohibition on processing special categories of data (including health data) "when the processing is necessary for reasons of substantial public interest, based on Union law or the law of a Member State which must be proportionate to the objective pursued, respect the essence of the right to data protection, and provide for appropriate and specific measures to safeguard the fundamental rights and interests of the data subject."

62.

In this case, the Contentious Chamber is of the opinion that it follows from both the mission entrusted to the defendant by the decree of October 13, 2016, and its implementing order as well as from the judgment of the family court that the processing of the health data of the complainant's son is authorized for a substantial public interest reason. This "substantial public interest reason" indeed exists "on the basis of the law of a Member State," which "law" meets the quality requirements set forth in article 9.2. g) of the GDPR.

To the extent necessary and because the complainant seems to conclude that the conditions of article 8.1 of the LTD would not be satisfied in this case, the Contentious Chamber specifies that while article 8.1 of the LTD does indeed implement article 9.2. g) of the GDPR and lists some hypotheses in which

25 Annex 16 specifically mentions the holding of meetings with the minor (point C.2.3.).

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An important public interest reason lifts the prohibition on processing special categories of data; this list in Article 8.1 of the LTD is not exhaustive. The "important public interest reason" referred to in Article 9.2. g) of the GDPR may arise from other Belgian legislation than the LTD.

A public interest mission (support for the relationship with the litigant) has been entrusted to the defendant by the community legislator (decree of October 13, 2016). The processing of personal data of the complainant and his son carried out by the defendant, at the request of the court, in execution of this mission is based on Article 6.1. e) of the GDPR read in light of the aforementioned decree and judgment (see above). Among the data processed are health-related data concerning the

complainant's child, which the defendant is, in the opinion of the Contentious Chamber, authorized to process in this case as their processing is necessary for an important public interest reason within the meaning of Article 9.2. g) of the GDPR. This reason is also grounded in the mission entrusted to the defendant, read in light of the family court's judgment, which consists of providing the judge, in the child's interest, with an accurate report of the meetings between the complainant and his child within the framework of relationship support, including elements of the child's health that may arise during these meetings.

Authorizing the processing of health data in this case is proportionate to the objective pursued by the standard, concerning the establishment of relationship support in the form of meetings and involving the factual relationship of the meeting organized by the defendant intended to inform the appointing magistrate.

The very essence of the right to data protection of the complainant's son, who retains the rights conferred upon him by the GDPR regarding these data processing activities, is not called into question by the text of the decree.

There are guarantees provided by law in terms of safeguarding fundamental rights and the interest of the complainant's son, such as (1) the fact that relationship support partners like the defendant are accredited based on specific conditions including compliance with data protection regulations (Article 18, 7° of the decree of October 13, 2016) and that this accreditation is time-limited (Article 17 of the decree of October 13, 2016); (2) the obligation of confidentiality and professional secrecy to which the staff of the defendant are bound (Article 51 of the decree of October 13, 2016); (3) the fact that only the appointing magistrate (apart from the parents and their counsel) is the recipient of the reports (as permitted by the 2016 decree – see for example point 2.2. of the already cited annex 16 and as provided for by the judgment); and (4) the possibility, as the defendant has informed the complainant, to make observations regarding the content.

26 See also point C.2.2. of the already cited annex 16 which mentions the implementation of specific conditions for the care of the minor.

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and consequences of such a report before a magistrate within the framework of the judicial procedure, which magistrate may also address issues of personal data protection.

63. Regarding the necessity of processing the said data in this case, in addition to the fact that the complainant himself mentions the child's swallowing difficulties, the defendant must provide a complete account of the meeting. Furthermore, the complainant does not present any evidence that would allow the Contentious Chamber to conclude that the processed data were not necessary to satisfy this important public interest in the exercise of the defendant's mission.

64. In conclusion on this point, the Contentious Chamber decides that the conditions of Article 9.2. g) of the GDPR were satisfied in this case. Article 9.2. g) of the GDPR being invoked, the Contentious Chamber reminds the defendant of the obligations set forth in Article 8.2 of the LTD27 in the event of processing special categories of data.

Conclusion

65. In conclusion, the Contentious Chamber considers that the conditions of both Article 6.1. e) and Article 9.2. g) of the GDPR have been met and that no breach arising from the absence of a lawful basis for the processing of data (health data) can be attributed to the defendant, either from the complainant or from his son.

66. In response to the argument raised by the complainant regarding Article 8.1 of the GDPR²⁸ – as well as Article 7 of the LTD which implements it – the Contentious Chamber concludes that these articles do not apply.

67. Indeed, Article 8.1 of the GDPR applies only when the processing is based on consent (Article 6.1. a) of the GDPR). This is not the case here, as the Contentious Chamber has just validated that the processing of the personal data in question, including that of the complainant's son under 13 years of age, is based on Article 6.1. e) of the GDPR (materialized by the decree of October 13, 2016) and not on the consent of the complainant.

68. Moreover, the Contentious Chamber adds that the condition that it must be a processing related to

the direct offering of services of the information society to a

27 Article 8 § 2 LTD. The data controller and, where applicable, the processor shall establish a list of categories of persons having access to personal data with a description of their function in relation to the processing of the data concerned. This list shall be made available to the competent supervisory authority. The data controller and, where applicable, the processor shall ensure that the designated persons are bound, by a legal or statutory obligation, or by an equivalent contractual provision, to respect the confidentiality of the data concerned.

28 See also European Data Protection Board (EDPB), Guidelines 05/2020 on consent under Regulation (EU) 2016/679, points 125 and following:

https://www.edpb.europa.eu/sites/default/files/files/file1/edpb_guidelines_202005_consent_fr.pdf

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the child is no more satisfied. In order to determine the scope of the term "service of the information society" in the GDPR, Article 4.25 of the GDPR refers to Article 1.1.b) of Directive (EU) 2015/1535, which defines the "service of the information society" as:

"Any service normally provided for remuneration, at a distance, by electronic means and at the individual request of a service recipient. For the purposes of this definition, the following is understood: i) 'at a distance', a service provided without the parties being simultaneously present; ii) 'by electronic means', a service sent from the origin and received at the destination by means of electronic processing equipment (including digital compression) and data storage, and which is fully transmitted, routed, and received by wires, radio, optical means, or other electromagnetic means; iii) 'at the individual request of a service recipient', a service provided by the transmission of data at the individual request."

69. In this case, the defendant does not provide a service at a distance, by electronic means, and at the individual request of a service recipient. She records in writing the proceedings of physical meetings as part of her mission to support the connection. The fact that her reports are typed does not qualify her activity as a "service of the information society." Her reports containing personal data support the core of her mission, which is to promote connection assistance through in-person meetings, in this case between the complainant and his son. Similarly, the magistrate to whom the defendant communicates her reports, even if electronically, is not a requesting recipient of such a "service" since there is, in this case, no "service of the information society" as defined by the GDPR.

70. Without drawing any conclusions regarding the existence of a violation, the Disciplinary Chamber questions the practice of the defendant, which consists of obtaining consent from the data subject regarding the processing of their personal data (see above point 15) in cases like the present one, where such data processing results from a mission entrusted to the defendant by the judge in accordance with the decreed mission assigned to her. If the data subject has no choice but to comply with said judgment, the free nature of the consent (as required by Article 6.1.a) read in conjunction with Article 4.11 of the GDPR) thus obtained is questionable. However, the Disciplinary Chamber notes that the document also provides information to the data subjects, which leads the Disciplinary Chamber to believe that it is an informative type of document. The Disciplinary Chamber is of the opinion that this document does not undermine the defendant's intervention based on Article 6.1.e) of the GDPR as explained above. However, it is important not to create confusion among the data subjects regarding the legal basis invoked, as this has consequences for them in terms of rights.

II.3. Regarding the lack of follow-up to the complainant's request for rectification (Article 16 of the GDPR)

II.3.1. Positions of the parties

Position of the complainant

71. The complainant believes that it is sufficient to compare the reports produced with his request to, as understood by the Disciplinary Chamber, realize that he indeed intends to contest the accuracy of the data and not merely request simple reformulations. He adds that the defendant cannot claim that it is another party (namely the family court) that should rectify the data processed by the connection assistance partner. Finally, the complainant relies on the fact, as mentioned in the discussion regarding the legality of the processing (Title II.2.), that the "reporting" carried out by the defendant is

illegal and unconstitutional. He also argues that the absence of limitation on his right to rectification under Article 14.3. of the LTD30 de facto allows him to claim this right.

Position of the defendant

72. The defendant emphasizes that the complainant does not challenge the accuracy of the information she reports in her reports. Requesting that one term or another in the report be replaced by others, that a sentence be reformulated, or that clarifications and details be added without altering the meaning of the report does not challenge the accuracy of the processed data.

73. The defendant further argues that the complainant provides no evidence of the inaccuracy of the disputed data, whereas the text of Article 16 of the GDPR explicitly states that rectification can be obtained regarding data that is inaccurate.

74. The defendant finally notes that she has repeatedly reminded the complainant that he has the right to submit his observations to the family court to have the information in the report that he deems inaccurate rectified. The defendant specified that she could send the complainant's remarks to the court if that was his wish.

75. In conclusion, the defendant argues that it was justified not to grant the complainant's request for rectification. Article 16 of the GDPR has therefore not been violated.

30 See below points 85-87 of the decision for the content of Article 14.3. of the LTD.

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II.3.2. Assessment of the Dispute Chamber

76.

The Dispute Chamber recalls that Article 16 of the GDPR, which enshrines the right to rectification, states the following:

“The data subject has the right to obtain from the controller, without undue delay, the rectification of inaccurate personal data concerning them. Considering the purposes of the processing, the data subject has the right to have incomplete personal data completed, including by providing a supplementary statement.”

77.

It follows from the complaint and the documents in the file (points 11 and 14) that the complainant wishes to rectify certain passages of the reports written by the defendant that recount their meetings with their son (in their request referred to in point 11 above, the complainant denounces “incorrect” data). This factual relationship containing personal data concerning both the complainant and their minor son (see points 26 and following), the complainant is entitled to exercise the rights conferred upon them by Articles 15 to 22 of the GDPR, including the right to rectification provided for by Article 16.

78.

Article 16 of the GDPR is closely linked to the principle of data accuracy enshrined in Article 5.1.d) of the GDPR.

79.

Its application presupposes in its first part (first sentence) that the personal data of the data subject is inaccurate. The Dispute Chamber has no elements allowing it to assess the accuracy or inaccuracy of the elements of reports 1 and 5 concerned that recount facts that occurred in the presence of the parties. The complainant indeed provides no evidence to the Dispute Chamber to support their request for rectification. Therefore, the Dispute Chamber finds that it is not possible to establish any breach of Article 16 of the GDPR on the part of the defendant and consequently cannot order the defendant to comply with the complainant's request for rectification.

80. Upon reviewing the requests communicated by the complainant (see point 14), the Dispute Chamber further notes that for many of them, these are requests for clarifications, additions, or reformulations that do not call into question the accuracy of what has been recorded.

81.

The Dispute Chamber notes that the defendant responded to the complainant within the time frame prescribed by Article 12.4 of the GDPR applicable in the event of a refusal to comply with a request.

31 It is the Dispute Chamber that emphasizes this.

32 Article 5.1.d) of the GDPR: Personal data must be accurate and, where necessary, kept up to date; all reasonable measures must be taken to ensure that personal data that is inaccurate, in relation to the purposes for which it is processed, is erased or rectified without delay (accuracy).

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of rectification. The defendant, on June 8, 2022, sent a reasoned response to the request of June 1, 2022, from the complainant, within the one-month deadline prescribed by Article 12.4 of the GDPR (points 11-12 above). The Contentious Chamber recalls that, in addition to complying with the response deadline within the month and mentioning the reasons for refusal, Article 12.4 of the GDPR requires that the data controller informs the recipient of the said response about the possibility of lodging a complaint (claim – Article 77 of the GDPR) with a data protection authority and of filing a judicial appeal (Article 79 of the GDPR).

82. The Contentious Chamber adds that a data controller cannot, as emphasized by the complainant, evade its obligation to rectify by referring the data subject (in this case, the complainant) to the final recipient of the data, even if that recipient was designated to carry out a mission involving the said data processing. However, this is not what occurred in this case. If any data in the reports had proven to be inaccurate, the defendant, in its capacity as data controller, would have had to rectify them. It deemed that this was not the case in the present instance and responded on June 8, 2022, to the complainant, emphasizing that it was factually recounting what had occurred. Furthermore, it indicated to the complainant that he could contest the content of the report before the court within the framework of judicial proceedings. By doing so, the defendant did not evade its obligation to rectify by referring the complainant to the family court. It first motivated its refusal satisfactorily. The defendant did not literally state the absence of inaccuracy of the data, but the Contentious Chamber is of the opinion that by indicating that the reports faithfully recounted the facts and acknowledging the application of the GDPR through the reference to the legal bases, this motivation is satisfactory in the present case.

83. The Contentious Chamber further dismisses the complainant's argument that since the limitations admitted by Article 14.3 of the LTD on the right to rectification do not apply to the defendant, he was necessarily entitled to obtain the requested rectifications.

84. Article 14.3 of the LTD must be read in conjunction with Article 14.1 of the LTD, which states that "in application of Article 23 of the Regulation [read the GDPR], Articles 12 to 22 [including Article 16 of the GDPR in question here] and 34 of the Regulation, as well as the principle of transparency of processing referred to in Article 5 of the Regulation, do not apply to data processing carried out directly or indirectly by judicial authorities, police services, the General Inspectorate of the Federal Police and local police, the Financial Information Processing Unit, the General Administration of the

33 Article 12.4 of the GDPR: 4. If the data controller does not respond to the request made by the data subject, it shall inform the data subject without delay and at the latest within one month of receiving the request of the reasons for its inaction and the possibility of lodging a complaint with a supervisory authority and of seeking a judicial remedy.

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customs and excise, and the Passenger Information Unit referred to in Title 2, with respect to: 1° public authorities, within the meaning of Article 5 of this law, to which the data has been transmitted by or under the law, a decree, or an order, and 2° other bodies and organizations to which the data has been transmitted by or under a law, a decree, or an order.

85. Article 14.3 of the LTD specifies that "these limitations apply only to data initially processed for the purposes referred to in Article 27 of this law," namely for the purposes of preventing and detecting criminal offenses, investigations and prosecutions in this matter, or enforcing criminal sanctions, including protection against threats to public safety and the prevention of such threats.

86. The Contentious Chamber states in this regard that while the complainant is indeed recognized a right to rectification in accordance with Article 16 of the GDPR, the complainant must nonetheless be in the conditions for the application of this article to obtain a rectification, which, as explained above, was not the case in the absence (of proof of) inaccuracy of the processed data. The circumstance that any potential limitations on this right—otherwise permitted for instances falling under Title II of the LTD

not applicable in this case—could not be invoked by the defendant does not make the complainant's right to rectification an unconditional or absolute right. The conditions for the application of Article 16 of the GDPR remain, and they were, as demonstrated above, not satisfied in this instance.

87. In conclusion on this point, the Contentious Chamber finds, as it did in point 79 above, that Article 16 of the GDPR has not been violated by the defendant.

II.4. Regarding the lack of response to the complainant's request for erasure (Article 17 of the GDPR)

II.4.1. Positions of the parties

Position of the complainant

88. As a result of the unlawfulness of the data processing carried out by the defendant (see above), the complainant believes that, necessarily, the said data should have been erased in accordance with Article 17 of the GDPR.

Position of the defendant

89. The defendant states that the processing is not unlawful since it is based on a valid legal basis compliant with applicable law on the one hand (Title II.2.) and the data is not erroneous on the other hand (Title II.3), the complainant had no grounds within the meaning of Article 17.1 of the GDPR allowing him to request that his data be erased.

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90. The defendant further relies on Article 17.3.b) of the GDPR, which explicitly provides that:

"The paragraphs 1 and 2 do not apply insofar as the processing is necessary: (...) (b) to comply with a legal obligation which requires the processing by Union law or by the law of the Member State to which the controller is subject, or to perform a task carried out in the public interest or in the exercise of official authority vested in the controller."

91. The defendant finds in Article 17.3.b) of the GDPR a double reason for having refused the erasure of the data. On the one hand, it concludes that as a result of its public interest mission, the complainant has no right to the erasure of the data processed in the context of the meetings between the parent and his child requested by the court. On the other hand, it adds that even if the defendant were to allow the complainant to exercise his right to erasure, quod non, it could not proceed with such erasure as it is bound by a legal obligation that opposes the erasure of the data, pursuant to Article 21 of the Decree of October 13, 2016, already cited.

- Said Article 21 provides that "at the request of the administration, the partner shall provide it with all information relating to the execution of the mission, according to the modalities determined by the Government."

- Under Article 21/1 of the same decree, the following is provided:

"§1. In the case of the application of Article 21, in order to control the execution of the missions by the partners, the categories of data processed by categories of data subjects are as follows:

1° (...)

2° litigants:

- Identification data
- Data relating to personal characteristics
- Data on household composition
- Data relating to sexual life and sexual orientation
- Data relating to criminal convictions and offenses referred to in Article 10 of the GDPR

§ 3. The government shall determine the list of data referred to in paragraphs 1 and 2, the retention periods, and the modalities for communication to the data subjects."³⁴

³⁴ Decree of December 1, 2022 amending the decree of October 13, 2016 concerning the approval and funding of partners, M.B., February 1, 2023, Article 12.

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92. The defendant adds that the retention periods referred to in the aforementioned Article 21/1 are found in the order of the government of the French Community dated May 17, 2017, implementing the decree, in its Article 50/2.2, which specifies that the data is retained for 13 years.

93. Article 15 of the implementing order of May 17, 2017, further obliges the partner to make available to the administration the documents that allow for the monitoring of the execution of actions, activities,

and tasks enabling the achievement of the mission. The broad notion of "documents" referred to in this article again confirms, according to the defendant, its obligation to retain for relatively long periods all data processed in connection with the execution of the mission entrusted to it by the decree or by the judicial mandate.

94. Finally, the defendant indicates that it is also required to justify the subsidies granted to it by transmitting at least the following information monthly: the mission and the services concerned, the total number of cases handled by type of litigant, the start dates and, where applicable, the closure dates of the cases (Article 34 of the aforementioned order of the government of the French Community dated May 17, 2017).

95. In conclusion, the defendant believes that it was justified in not complying with the plaintiff's request for deletion. Article 17 of the GDPR has therefore not been violated.

II.4.2. Assessment of the Litigation Chamber

96. The Litigation Chamber recalls that under Article 17.1 of the GDPR, the data subject has the right to obtain from the data controller the erasure, without undue delay, of personal data concerning them, on the one hand, and the data controller has the obligation to erase such personal data without undue delay when one of the following grounds applies, on the other hand:

- a) the personal data are no longer necessary for the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based, in accordance with Article 6(1)(a) or Article 9(2)(a), and there is no other legal basis for the processing;
- c) the data subject objects to the processing under Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing under Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased to comply with a legal obligation under Union law or the law of the Member State to which the data controller is subject;
- f) the personal data have been collected in the context of the offering of information society services referred to in Article 8(1).

97. The Litigation Chamber decides, based on its previous findings, that in this case, the defendant cannot be reproached for a breach of Article 17.1(d) of the GDPR, which the plaintiff seems to invoke due to processing of erroneous data (see above title II.3.) or without a legal basis (see above – title II.2).

98. However, the Litigation Chamber does not agree with the assertion made by the defendant in its summary conclusions that, since the processing would not be unlawful (Article 17.1(d) of the GDPR), no grounds of Article 17.1 of the GDPR could be invoked. In principle, other hypotheses could at least have been considered by the defendant, such as those provided for in Article 17.1(a) or Article 17(c) of the GDPR. However, the Litigation Chamber agrees with the argument that the defendant had, in any case, a ground for exemption from its possible obligation to erase under Article 17.3(b) of the GDPR.

99. The Litigation Chamber notes in this regard that the defendant responded on June 8, 2022, to the request of June 1 from the plaintiff, thus respecting the one-month deadline prescribed by Article 12.4 of the GDPR applicable in the event of a refusal to comply with a request based on Article 17 of the GDPR. The defendant thus justified within the deadline that it could not proceed with the erasure given its obligation to archive and justify the subsidies received, both required by law (point 12). As it did in point 83 above, the Litigation Chamber recalls that, in addition to respecting the response deadline within the month and mentioning the reasons for refusal, Article 12.4 of the GDPR requires that the data controller inform the recipient of the said response of the possibility to lodge a complaint (claim – Article 77 of the GDPR) with a data protection authority and to bring a judicial remedy (Article 79 of the GDPR).

100. Regarding Article 21/1 of the decree of October 13, 2016, invoked by the defendant, the Litigation Chamber notes, as raised by the plaintiff, that it was not applicable at the time of the facts. This article was indeed introduced, as mentioned by the defendant in footnote 17 of its conclusions, by Article 12 of the decree of January 1, 2017.

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December 2022 amending the decree of October 13, 2016. It only came into effect on May 1, 2023,

except for non-applicable exceptions in this case.

101. Regarding Articles 15 and 34 of the government order of May 17, 2017, the Contentious Chamber notes that both were in effect at the time of the facts. This results in an obligation to provide the administration with documents that allow for the monitoring of the execution of actions, activities, and tasks enabling the defendant to fulfill its mission (Article 15), as well as the communication of administrative information intended to allow for the calculation of its funding (Article 34).

102. The Contentious Chamber shares the defendant's view that Article 15 of the decree refers to a broad notion of what should be understood as a "document." In this case, and in any event, the Contentious Chamber is of the opinion that while possibly not all documents issued by the defendant in the execution of its mission need to be archived or retained as such in compliance with its archiving obligations and the GDPR, documents such as reports issued to the family judge, as in this case, are absolutely essential and could not, in this instance, have been deleted as of June 8, 2022 (the date of the complainant's request), given that they had only been submitted to the judge on May 15, 2021, a little over a year prior.

103. The Contentious Chamber concludes that the defendant was justified in invoking Article 17.3 b) of the GDPR and that, consequently, Article 17 of the GDPR was not violated.

III. Corrective Measures and Sanctions

104. Under Article 100 LCA, the Contentious Chamber has the power to:

- 1° dismiss the complaint without further action;
- 2° order a dismissal;
- 3° pronounce a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings or reprimands;
- 6° order compliance with requests from the data subject to exercise their rights;
- 7° order that the concerned party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 9° order compliance with processing requirements;
- 10° order the rectification, restriction, or deletion of data and notification of such to the data recipients;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose penalties;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another State or an international organization;
- 15° refer the case to the Public Prosecutor of Brussels, who will inform it of the follow-up given to the case;
- 16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

105. In this case, the Contentious Chamber decides to dismiss the complaint without further action, in accordance with Article 100, 1° of the LCA, for the reasons set out below.

106. In matters of dismissal without further action, the Contentious Chamber is required to justify its decision step by step and to:

- pronounce a technical dismissal without further action if the file does not contain or does not contain sufficient elements likely to lead to a sanction or if it presents a technical obstacle preventing it from making a decision;
- or pronounce an opportunistic dismissal without further action if, despite the presence of elements likely to lead to a sanction, the continuation of the examination of the file does not seem appropriate given the priorities of the Data Protection Authority (DPA) as specified and illustrated in its Policy on Dismissal without Further Action.

107. In the event of a dismissal without further action based on several grounds, these must be addressed in order of importance.

108. Under this decision, the Contentious Chamber decides to proceed with a technical dismissal of the complaint as it has concluded in sections II.2, II.3, and II.4 above that the defendant was not guilty of any breach of the GDPR in this case.

35 Market Court (Court of Appeal of Brussels), September 2, 2020, judgment 2020/AR/329, p. 18.

36 In this regard, the Contentious Chamber refers to its policy on dismissal without further action as developed and published on the website of the Data Protection Authority: <https://www.autoriteprotectiondonnees.be/publications/politique-de-classement-sans-suite-de-la-chambre-contentieuse.pdf>.

37 See Title 3 – In what cases is my complaint likely to be dismissed without further action by the Contentious Chamber? from the policy on dismissal without further action of the Contentious Chamber. Decision on the merits 120/2024 — 31/33

IV. Publication of the decision

IV.1. Position of the parties

109. The defendant requests, primarily, that the decision of the Contentious Chamber not be published. In the alternative, it requests that the published decision be redacted of any reference allowing for identification.

110. The complainant believes that the decision to be made should be published.

IV.2. Assessment of the Contentious Chamber

111. Given the importance of transparency regarding the decision-making process of the Contentious Chamber, this decision is published on the website of the Data Protection Authority (APD). However, it is not necessary for the identification data of the parties to be directly mentioned for this purpose.

112. The Contentious Chamber cannot indeed grant the defendant's request not to publish this decision.

113. In accordance with its Publication Policy³⁸, the Contentious Chamber publishes each of its decisions with the aim of administrative transparency, which is required given both its missions as a data protection supervisory authority (Article 57.1. b) and d) read in conjunction with Article 51 of the GDPR) and its status as an administrative authority subject to the principles of good administration. It is for these reasons that this decision is published. In this regard, the Contentious Chamber ensures that the reasoning for its decision regarding publication is included under the heading "Publication" and not under the heading "Regarding corrective measures and sanctions."

114. This publication also aims to give visibility to the work of the APD (role of information and awareness towards businesses and citizens, including the press), work for which it must also report publicly (both to policymakers and the general public). The independent administrative authority character of the APD, as well as its extensive missions and powers, indeed justifies that it must publicly account for its activities and allow everyone to easily and transparently access its positions. Finally, one of the missions of the Contentious Chamber is also to establish consistent case law. To this end, the request, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the jurisdiction or filed with the registry.

38 Data Protection Authority, Contentious Chamber, Publication Policy of the Contentious Chamber dated December 23, 2020: <https://www.autoriteprotectiondonnees.be/publications/politique-de-publication-des-decisions-de-la-chambre-contentieuse.pdf>

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(signed) Hielke HIJMANS

President of the Contentious Chamber

40 The request, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the jurisdiction or filed with the registry.